

Acid and Other Hazardous Chemical Substances (Regulation) Act, 2079

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 14

Acid and Other Hazardous Chemical Substances (Regulation) Act, 2079

Certification and Publication Date

2079.03.31

Amending Act

1. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act No. 8 of the year 2079

An Act Made to Provide for the Regulation of Acid and Other Hazardous Chemical Substances

Preamble: Whereas, it is expedient to make legal provisions for regulating the production, export, import, storage, transportation, sale and distribution, use, and disposal of acid and other hazardous chemical substances, and for preventing adverse effects on the health of humans and animals and other biological or non-biological objects,

The Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the ?Acid and Other Hazardous Chemical Substances (Regulation) Act, 2079?.

(2) This Act shall come into force immediately. 2. Definition: Unless the subject or context otherwise requires, in this Act,-

(a) ?License? means a license issued pursuant to Section 3.

(b) ?Licensee? means a person who has obtained a license.

(c) ?Licensing Officer? means the officer referred to in Section 4.

(d) ?Other hazardous chemical substances? means chemical substances, other than acid, capable of causing serious harm, injury, or damage to human limbs, animals, or other biological or non-biological objects, as specified by the Government of Nepal by publishing a notice in the Nepal Gazette.

(e) ?Production? means the act of producing, processing, synthesizing, or creating acid or other hazardous chemical substances in any manner, and the said term also includes the act of packaging or re-packaging such substances.

(f) ?District Committee? means the District Acid or Other Hazardous Chemical Substances Control Committee referred to in Section 20.

(g) ?Acid? means an inorganic acid-based chemical substance that burns, causes corrosive damage, or otherwise seriously affects human limbs, animals, or other biological or non-biological objects, and the said term also includes Nitric Acid, Sulfuric Acid, and Hydrochloric Acid, and other hazardous and flammable acid-based chemical substances specified by the Government of Nepal by publishing a notice in the Nepal Gazette.

(h) ?Prescribed? or ?as prescribed? means prescribed or as prescribed in the Rules framed under this Act.

(i) ?Ministry? means the Ministry of Home Affairs of the Government of Nepal.

(j) ?Committee? means the Central Acid and Other Hazardous Chemical Substances Control Committee referred to in Section 16. Chapter-2

Provisions Relating to License

3.

Requirement to Obtain License: (1) A person desiring to produce, export, import, or sell and distribute acid or other hazardous chemical substances must obtain a license pursuant to this Act. (2) A person desiring to obtain a license pursuant to Sub-section (1) shall submit an application to the Licensing Officer in the format as prescribed, attaching the following details and documents:- (a) Name, address, and contact telephone number of the person desiring to obtain the license, (b) Copy of the National Identity Card or citizenship or passport of the person desiring to obtain the license, (c) Copy of the certificate of registration of the industry, business, firm, or company established according to law, and proof of tax clearance for the last fiscal year, (d) Name of the acid or other hazardous chemical substance for which the license is desired, (e) If for production or sale and distribution, the place of production or sale and distribution, and if for export or import, the country of export or import, (f) Technical specifications including the composition, quantity of the acid or other hazardous chemical substance, (g) If producing acid or other hazardous chemical substances, the purpose of production, production capacity, estimated quantity, grade, and type to be produced, details of having completed the necessary infrastructure for that, (h) If importing acid or other hazardous chemical substances, the purpose and sector of use, (i) Recommendation letter from the relevant Ministry, if for production, export, or import, (j) Other details as prescribed. (3) Upon making necessary inquiries into the application received pursuant to Sub-section (2), if it appears appropriate to grant the license, the Licensing Officer shall, mentioning the conditions to be complied with while producing, exporting, importing, storing, transporting, or selling and distributing the acid or other hazardous chemical substances, provide the license to the applicant in the format as prescribed within fifteen days of application. (4) The fee chargeable for obtaining the license and other arrangements relating to the license shall be as prescribed. 4. Licensing Officer: (1) The following officer may issue a license for the production, export, import, or sale and distribution of acid or other hazardous chemical substances:- (a) For production, export, or import: the Ministry, (b) For sale and distribution: the Chief District Officer of the concerned district, or the District Administration Office or an officer under them designated by them. (2) If, while carrying out work according to a license obtained pursuant to Sub-section (1), it becomes necessary to store or transport acid or other hazardous chemical substances, the licensee may, for that purpose, store or transport them up to the place of export, import, storage, or sale and distribution. 5.

Permission May Be Granted Only for Industrial Purposes: Notwithstanding anything contained elsewhere in this Act, in the case of specific types of acid or other hazardous chemical substances used in specific types of industries specified by the Ministry by publishing a notice in the Nepal Gazette, a license may be granted only

to the concerned industry for the quantity necessary for industrial purposes. 6. Validity Period and Renewal of License: (1) The validity period of a license shall be five years. (2) The licensee shall submit an application for renewal of the license to the Licensing Officer at least thirty-five days before the expiry of the period referred to in Sub-section (1). (3) A licensee unable to submit an application within the period referred to in Sub-section (2) may submit an application for renewal of the license to the Licensing Officer with double the fee within thirty-five days from the date of expiry of the period referred to in Sub-section (2). (4) Upon making necessary inquiries regarding the application received pursuant to Sub-section (2) or (3), the Licensing Officer may renew the license for another five years. (5) The format of the application to be submitted for license renewal, the fee chargeable for renewal, and other arrangements relating to license renewal shall be as prescribed. 7. Termination of License: (1) If the license is not renewed pursuant to Section 6, such license shall automatically terminate. (2) The Licensing Officer may terminate the license in the following circumstances:- (a) If the documents or details submitted to obtain the license are found to be false, (b) If the licensee violates the conditions to be complied with pursuant to this Act or the Rules framed under this Act, (c) If the licensee submits an application to have the license terminated, or (d) If, due to violation of the conditions mentioned in the license, the licensee is fined or punished pursuant to this Act. (3) Before terminating the license pursuant to Sub-section (2), the Licensing Officer shall, giving the concerned licensee a period of fifteen days, provide an opportunity to submit any reasonable grounds and reasons why the license should not be terminated.

Chapter-3

Conditions to be Complied with by Licensee

8. Conditions to be Complied with by Licensee: (1) The licensee shall, while producing, exporting, importing, storing, transporting, packaging, or re-packaging acid or other hazardous chemical substances, comply with the following conditions:-

(a) Technical conditions and standards as prescribed relating to production, storage, transportation, packaging, and re-packaging must be fulfilled,

(b) While producing, packaging must be done by sealing in safe and suitable bottles, containers, or packets in a manner that prevents breakage, leakage, and spillage from the container during storage or transportation,

(c) While producing, the method of use must be mentioned on the container, container, or packet to be sold,

(d) Retail sale in a quantity exceeding the prescribed limit must not be done,

(e) Acid or other hazardous chemical substances to be sold at retail must not be kept in packets or bottled without sealing in a quantity exceeding the prescribed quantity,

(f) While selling at retail, the container, container, or packet to be sold must be of the quality and size as prescribed,

(g) The container must be securely sealed so that it cannot be easily opened,

(h) Records must be maintained showing the details of the stock and sale, type, and details of the purchaser of the acid or other hazardous chemical substances produced, exported, imported, or sold and distributed by oneself,

(i) Documents and records related to the purchase, sale, and related matters of acid or other hazardous chemical substances must be kept updated,

(j) Documents must be maintained showing technical specifications of the acid or other hazardous chemical substances,

(k) While storing or using acid or other hazardous chemical substances, it must be done safely, out of reach of children or mentally ill persons,

(l) A warning message stating that the area is a hazardous zone must be publicly displayed at the site of production or storage of acid or other hazardous chemical substances,

(m) While selling and distributing acid or other hazardous chemical substances, the purchaser must be informed that using it for a purpose other than the one for which it was purchased shall result in punishment according to law,

(n) While exporting acid or other hazardous chemical substances, they must be safely transported to the place of export,

(o) While producing, storing, exporting, importing, transporting, or selling acid or other hazardous chemical substances, if any conditions have been determined to be complied with according to prevailing law, such conditions must be complied with,

(p) Other conditions as prescribed.

(2) While prescribing conditions pursuant to Clause (p) of Sub-section (1), different conditions may be prescribed for the production, export, import, storage, transportation, and sale of acid or other hazardous chemical substances.

(3) Acid or other hazardous chemical substances shall not be kept in containers, bottles, or packets of the shape, type, and color commonly used for drinking water, milk or milk products, soft drinks, or alcoholic substances, nor shall they be packaged in a way that resembles such substances.

(4) While storing or transporting acid or other hazardous chemical substances, it must be done appropriately and safely, complying with technically necessary safety measures to prevent leakage, fire, or explosion.

(5) While transporting prescribed specific types of acid or other hazardous chemical substances, the quantity transported at one time shall not exceed the prescribed quantity.

(6) A person or firm taking permission to produce, transport, store, sell and distribute, and use acid or other hazardous chemical substances must get insurance for the persons engaged in such work as prescribed.

9. Requirement to Mention Warning Message and Symbol: (1) A producer producing acid or other hazardous chemical substances shall clearly and understandably print on the outer part of the packaging and label of the tin, packet, or bottle of such substance a warning message indicating danger as determined by the Committee and a danger-indicating symbol in the Nepali language.

(2) Sale and distribution of acid or other hazardous chemical substances that do not meet the standards under Sub-section (1) shall not be permitted. 10. Requirement to Submit Details: (1) The licensee shall send details as prescribed of the acid or other hazardous chemical substances produced, exported, or imported by them every six months through the concerned Chief District Officer or directly to the Licensing Officer.

(2) While submitting details pursuant to Sub-section (1), a producer producing acid or other hazardous chemical substances must also disclose details of whether production was carried out according to production capacity or not.

(3) An industry using acid or other hazardous chemical substances as raw material or auxiliary raw material to produce any article shall send details of the article produced in that manner and the quantity of acid or other hazardous chemical substances consumed for that purpose every six months through the concerned Chief District Officer or directly to the Licensing Officer.

(4) If the report pursuant to Sub-section (1) or (3) is not submitted, the Licensing Officer shall impose a fine of five thousand rupees to twenty thousand rupees. 11.

Purchase and Use of Acid or Other Hazardous Chemical Substances: (1) Only industries, laboratories, research institutions, educational institutions, workshops, firms, companies, or individuals engaged in making metal jewelry or other similar commercial work that use acid or other hazardous chemical substances may purchase acid or other hazardous chemical substances. (2) While purchasing acid or other hazardous chemical substances pursuant to Sub-section (1), only the quantity necessary for commercial purposes shall be purchased. (3) For the purchase of acid or other hazardous chemical substances pursuant to Sub-section (1) or (2), a request shall be made in writing to the licensee stating the purpose, quantity, method of use, place of use, and time of use. (4) Amended by Some Nepal Acts Amendment Act, 2082. Notwithstanding anything contained in Sub-section (2), if it becomes necessary to use acid or other hazardous chemical substances in a quantity exceeding the prescribed limit, prior approval must be obtained from the Chief District Officer stating the purpose, quantity, method of use, place of use, and time of use. (5) Other arrangements relating to granting prior approval for the use of acid or other hazardous chemical substances pursuant to Sub-section (4) shall be as prescribed. (6) An industry, institution, firm, company, or individual purchasing acid or other hazardous chemical substances shall store the purchased acid or other hazardous chemical substances in a manner that prevents misuse and does not pose a risk to any person. (7) Acid or other hazardous chemical substances purchased pursuant to this Section shall be used only for the purpose for which they were purchased. (8) An industry, firm, company, or individual using acid or other hazardous chemical substances shall maintain records of the quantity of acid or other hazardous chemical substances used. (9) If the records and details required to be maintained pursuant to Sub-section (8) are not found to be maintained, the concerned Chief District Officer shall impose a fine of up to ten thousand rupees. (10) Other conditions to be complied with while using or storing acid or other hazardous chemical substances shall be as prescribed. 12.

Prohibition on Sale, Distribution, and Display: (1) A licensee shall not sell, distribute, or cause to be sold, distributed, or give free distribution, or cause to be given free distribution of acid or other hazardous chemical substances to a person who has not completed eighteen years of age. (2) For the purpose of Sub-section (1), if the seller wishes to be certain about the age of a purchaser, they may ask the purchaser for necessary proof, and acid or other hazardous chemical substances shall not be sold or distributed to a person who refuses to show or does not show the proof so requested. (3) A licensee must sell the tin, packet, or bottle of acid or other hazardous chemical substances in a sealed or closed form, and it shall not be sold by breaking or opening it and pouring or keeping it in another tin or container in an open manner, or in any form different from the packaging done at the time of production. (4) While keeping acid or other hazardous chemical substances for sale at the place of sale, a licensee must keep them in a manner that does not provide easy access to purchasers or other persons and with special protection of such substance. 13. **Requirement to Maintain Sale Records:** (1) While selling acid or other hazardous chemical substances, the licensee shall, based on a written request made pursuant to Sub-section (3) of Section 11, sell and maintain records of the sale in the format as prescribed, stating the name, surname, address of the purchaser, for an individual the name of their father and mother, contact telephone number, date of purchase, name, quantity, and purpose

of such substance. (2) The sale records pursuant to this Section shall be maintained for one year from the date of sale. (3) If the records and details required to be maintained pursuant to this Section are not found to be maintained, the concerned Chief District Officer shall impose a fine of up to ten thousand rupees. 14.

Requirement to Obtain Approval Before Import: (1) Before importing acid or other hazardous chemical substances, the licensee shall submit an application to the Ministry for approval stating the following details:- (a) Name, address, and contact telephone number of the importer, (b) License number and validity period of the importer, (c) Details and quantity of the acid or other hazardous chemical substance intended to be imported, (d) Purpose of import, (e) Customs point or point of import. (2) Upon making inquiries into the application submitted pursuant to Sub-section (1), if it appears appropriate to grant approval for the import of such acid or other hazardous chemical substances, the Ministry shall grant approval to the applicant in the format as prescribed within seven days from the date of application. (3) The Ministry shall make arrangements so that the provisions for submitting applications and granting approvals pursuant to this Section can also be made through electronic means. (4) Notwithstanding anything contained in Section 3, if an industry registered or licensed under prevailing law needs to use acid or other hazardous chemical substances, such industry may import such acid or other hazardous chemical substances after obtaining prior approval pursuant to this Section. 15. **Disposal or Destruction of Acid or Other Hazardous Chemical Substances:** (1) While destroying or disposing of acid or other hazardous chemical substances, it must be done in a manner that does not adversely affect humans, birds and animals, aquatic life, plants, or other biological or non-biological objects and the environment. (2) If waste of acid or other hazardous chemical substances and its containers need to be destroyed or disposed of, they shall be destroyed or disposed of separately based on the nature of such substance. (3) Notwithstanding anything contained in Sub-section (1) and (2), if the prevailing law has provisions regarding the destruction or disposal of waste generated from any acid or other hazardous chemical substance for which a license is required under this Act, it shall be done accordingly. Chapter-4 Provisions Relating to Committee 16.

Central Acid and Other Hazardous Chemical Substances Control Committee: (1) There shall be a Central Acid and Other Hazardous Chemical Substances Control Committee to control or cause to be controlled acid or other hazardous chemical substances. (2) The Committee shall consist of the following Chairperson and members:- (a) Joint Secretary of the Ministry designated by the Ministry - Chairperson (b) Technical representative of the Ministry of Industry, Commerce and Supplies of the Government of Nepal - Member (c) Technical representative of the Ministry of Forests and Environment of the Government of Nepal - Member (d) Three persons nominated by the Ministry, including at least one woman, who have obtained at least a Master's degree in Chemistry-related subjects and have worked in the relevant field for at least five years - Member (e) Under Secretary of the concerned Section of the Ministry - Member-Secretary (3) The term of office of a member nominated pursuant to Clause (d) of Sub-section (2) shall be three years. (4) Notwithstanding anything contained in Sub-section (3), if a member nominated pursuant to Clause (d) of Sub-section (2) performs any act contrary to the interests of the Committee or neglects the work proceedings of the Committee, the Ministry may remove them from the post before the completion of their term. Provided that, before such removal, they shall be given a reasonable opportunity to submit a defense. 17. **Functions, Duties, and Powers of the Committee:** The functions, duties, and powers of the Committee shall be as follows:- (a) To provide necessary suggestions to the Government of Nepal regarding policy determination necessary for the management of acid or other hazardous chemical substances, (b) To conduct or cause to be conducted awareness programs regarding the safe use of acid or other hazardous chemical substances, precautions to be taken while using such substances, and measures to be taken to mitigate damage in case of an accident, (c) To prepare procedures and standards for the production, storage, transportation, sale and

distribution, destruction, or disposal of acid or other hazardous chemical substances and recommend them to the Ministry, (d) To perform or cause to be performed other functions as prescribed. 18.

Meeting of the Committee: (1) Meetings of the Committee shall be held as necessary. (2) The meeting of the Committee shall be held on the date, time, and place specified by the Chairperson of the Committee. (3) If more than fifty percent of the total number of members of the Committee are present, it shall be considered to constitute a quorum for the meeting of the Committee. (4) The meeting of the Committee shall be chaired by the Chairperson of the Committee. (5) The opinion of the majority shall prevail in the meeting of the Committee, and in case of a tie, the Chairperson of the Committee shall cast the deciding vote. (6) The decision of the Committee shall be certified by the Chairperson and the Member-Secretary of the Committee. (7) The Committee may invite experts on the relevant subject to its meetings as necessary. (8) Meetings of the Committee may also be held through video conference. (9) Other procedures relating to the meeting of the Committee shall be as determined by the Committee itself. 19. Development of Electronic Record System: (1) The Ministry may develop and implement a necessary electronic system to provide updated details related to the production, export, import, storage, transportation, and sale and distribution of acid or other hazardous chemical substances online. (2) The licensee shall provide or enter into the electronic system pursuant to Sub-section (1) details as prescribed of the acid or other hazardous chemical substances produced, exported, imported, stored, transported, and sold and distributed by them. (3) For the purpose of entering details pursuant to Sub-section (2), necessary access shall be given to the Licensing Officer and the licensee in the electronic system pursuant to Sub-section (1). 20. District Acid or Other Hazardous Chemical Substances Control Committee: (1) There shall be a District Acid or Other Hazardous Chemical Substances Control Committee in each district to control acid or other hazardous chemical substances. (2) The District Committee shall consist of the following Coordinator and members:- (a) Chief District Officer, or an officer of the District Administration Office designated by them - Coordinator (b) Officer representative of the Nepali Army - Member (c) Officer representative of the District Police Office - Member (d) One woman nominated by the Committee who has obtained at least a Bachelor's degree in a Science-related subject and has worked in the relevant field for at least three years - Member (e) Chief of the office related to cottage and small industries - Member (f) Officer representative of the Inland Revenue Office - Member (3) The meeting of the District Committee and its related procedures shall be as determined by the Committee itself. 21.

Functions, Duties, and Powers of the District Committee: The functions, duties, and powers of the District Committee shall be as follows:- (a) To inspect and monitor whether licensees within the district are complying with the provisions of this Act and the Rules framed under this Act and the conditions mentioned in the license while producing, exporting, importing, storing, transporting, or selling and distributing acid or other hazardous chemical substances, and report to the Committee, (b) To destroy or dispose of, or cause to be destroyed or disposed of, acid or other hazardous chemical substances that must be destroyed or disposed of, after completing the procedure pursuant to this Act, (c) To perform other functions as prescribed. 22. Submission of Report: (1) The Committee shall submit a report to the Ministry within three months of the end of each fiscal year, disclosing details as prescribed. (2) The District Committee shall submit a report to the Committee within one month of the end of each fiscal year, disclosing details as prescribed. Chapter-5 Provisions Relating to Offenses, Punishment, and Compensation 23. Offense: If a person commits or causes to be committed any of the following acts, they shall be deemed to have committed an offense under this Act:- (a) Producing, exporting, importing, or selling and distributing acid or other hazardous chemical substances without obtaining a license pursuant to Section 3, or importing acid or other hazardous chemical substances without obtaining approval pursuant to Section 14, (b) A licensee failing to comply with the conditions pursuant to Section 8, (c) A licensee failing to mention the warning message and danger-indicating

symbol on the outer part of the label while packaging tins, packets, or bottles pursuant to Section 9, (d) Selling, distributing, or displaying acid or other hazardous chemical substances contrary to Section 12, (e) Disposing of or destroying acid or other hazardous chemical substances contrary to Section 15, (f) Performing any other act contrary to this Act or the Rules framed under this Act. 24.

Punishment: If a person commits an offense pursuant to Section 23, the punishment shall be as follows:- (a) For committing any offense pursuant to Clause (a) of Section 23, a fine of fifty thousand rupees to one hundred thousand rupees and imprisonment for three months to one year, (b) For committing any offense pursuant to Clause (b) of Section 23, a fine of ten thousand rupees to fifty thousand rupees or imprisonment for up to one month or both, (c) For committing an offense pursuant to Clause (c) of Section 23, a fine of fifty thousand rupees to one hundred thousand rupees or imprisonment for up to three months or both, (d) For committing an offense pursuant to Clause (d), (e), or (f) of Section 23, a fine of ten thousand rupees to forty thousand rupees. 25. Provision Relating to Compensation: (1) If, due to the production, export, import, storage, transportation, sale and distribution, destruction, or disposal of acid or other hazardous chemical substances contrary to this Act, or due to non-compliance with the conditions to be complied with under this Act, any accident occurs causing harm, injury, or damage to the body, life, bodily organ, or property of any person, the concerned person shall give reasonable compensation to the victim based on the damage and impact caused, or if the victim has died, to their spouse, son, daughter, father, or mother living together as a joint family. (2) The compensation pursuant to Sub-section (1) shall be recovered by the concerned Chief District Officer upon the complaint of the victim, or if the victim has died, upon the complaint of their successor pursuant to Sub-section (1). (3) Notwithstanding anything contained elsewhere in this Section, in case of compensation in a case filed in any court, it shall be according to the judgment of that court. 26. May Be Kept as Deposit: (1) Acid or other hazardous chemical substances seized in the course of investigation of an offense punishable under this Act may, by order of the officer hearing the case, be sold to another licensee at the prevailing market price and the amount received kept as deposit until the final disposal of the case. (2) If the acid or other hazardous chemical substances cannot be sold pursuant to Sub-section (1), they shall be safely stored. (3) Acid or other hazardous chemical substances that cannot be safely stored pursuant to Sub-section (2) shall be destroyed or disposed of pursuant to Section 15, after maintaining records as prescribed. 27.

Forfeiture: (1) If a person is found to have committed an offense pursuant to Clause (a), (b), (c), or (d) of Section 23, and the acid or other hazardous chemical substances related to such offense have been seized and sold or stored pursuant to Section 26, such deposit amount or acid or other hazardous chemical substances shall be forfeited. (2) Acid or other hazardous chemical substances forfeited pursuant to Sub-section (1) shall be destroyed or disposed of pursuant to Section 15, after maintaining records as prescribed. Chapter-6 Miscellaneous 28. Officer Hearing Cases: (1) Among the cases punishable under Clause (a) of Section 23, the concerned Customs Officer shall have the authority to conduct initial proceedings and adjudicate cases related to export or import offenses. (2) The concerned Chief District Officer shall have the authority to conduct initial proceedings and adjudicate cases related to other offenses under this Act except those mentioned in Sub-section (1). 29. Appeal: A person not satisfied with the decision made by the officer hearing cases pursuant to Section 28 may file an appeal with the concerned District Court within thirty-five days from the date of such decision. 30. Punishment According to Prevailing Law: If any offense or act under this Act is also punishable according to other prevailing law, this Act shall not be deemed to have prevented action and punishment according to law for such offense. 31. Government of Nepal to be Plaintiff: (1) The Government of Nepal shall be the plaintiff in cases under this Act. (2) Cases under this Act other than the cases pursuant to Sub-section (1) of Section 28 shall be deemed to be included in Schedule-1

of the National Criminal Procedure Code, 2074. (3) Cases pursuant to Sub-section (1) of Section 28 shall be deemed to be included in Schedule-2 of the National Criminal Procedure Code, 2074, and the investigation of such cases shall be conducted by an employee of at least Non-Gazetted First Class of the concerned office designated by the concerned Customs Officer. 32.

Investigation and Action: (1) A person who learns that an offense under this Act has been committed, is being committed, or is about to be committed shall, as soon as possible, give information of such matter, disclosing the evidence available or known to them up to that point, to the concerned Investigating Officer or the nearest police office through written, oral, or electronic means. (2) Upon receipt of information pursuant to Sub-section (1), the concerned Investigating Officer or police office shall, if they are to conduct the investigation, commence the investigation as soon as possible, and if the investigation is to be conducted by another agency or officer, forward it to such agency or officer as soon as possible. (3) Upon receipt of information pursuant to Sub-section (1) or (2), or if the concerned Investigating Officer receives such information or knowledge through any means, they shall investigate and proceed with action pursuant to this Act. 33. Provision Relating to Monitoring and Inspection: (1) The Ministry may, as necessary, monitor and inspect or cause to be monitored and inspected whether the conditions or standards to be complied with pursuant to this Act or the Rules framed under this Act are being complied with or not, and whether safe arrangements have been made or not, while producing, exporting, importing, storing, transporting, selling and distributing, destroying, disposing of, or using acid or other hazardous chemical substances. (2) The Chief District Officer shall monitor and inspect within their district regarding the production, export, import, storage, transportation, or sale and distribution of acid or other hazardous chemical substances. (3) If the officer conducting monitoring and inspection pursuant to Sub-section (1) or (2) finds that the conditions to be complied with regarding the production, export, import, storage, transportation, or sale and distribution of acid or other hazardous chemical substances have not been complied with, they shall immediately cause such conditions to be complied with. (4) If, while monitoring and inspecting pursuant to Sub-section (1) or (2), any person is found to have committed an act constituting an offense under this Act, the officer hearing cases shall be informed for action against such person. 34. Conducting Awareness Programs: Concerned agencies of the Government of Nepal, Provincial Government, or Local Level shall conduct or cause to be conducted, or disseminate, necessary awareness programs regarding the precautions and safety measures to be adopted while using acid or other hazardous chemical substances, measures to be taken to mitigate damage in case of an accident, and potential damage from the use of acid or other hazardous chemical substances. 35. Power to Frame Rules: The Government of Nepal may make necessary Rules for the implementation of this Act. 36.